

HOUSE No. 4597

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure economic opportunity related to alcohol licenses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>9/25/2025</i>

HOUSE No. 4597

By Representative McMurtry of Dedham, a petition (subject to Joint Rule 12) of Paul McMurtry relative to licenses for off premises retail of alcoholic beverages located near other off premises licenses. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure economic opportunity related to alcohol licenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 138 of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by inserting, after section 16C, the following: -

3 Section 16D: Licenses for off premises retail of alcoholic beverages located near other
4 off premises licenses

5 (a) No license issued after 2026 for the sale of alcoholic beverages off premises shall be
6 issued if located within a radius of five hundred (500) feet of any other off premises licensee for
7 the sale of alcoholic beverages unless the local licensing authority determines in writing and after
8 a hearing that the premises are not detrimental to public health, safety, and the general welfare of
9 the community; but this provision shall not apply to the transfer of a license from premises
10 located within said distance to other premises located therein, if it is transferred to a location not
11 less remote from the off premises licensee.

12 (b) Any applicant who has been denied a license under this section shall have the right to
13 an appeal under section sixty-seven.